

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-08

FormuKleen, Inc.

Complainant,

v.

Top Shipping Systems, Corp.

(Respondent)

Response to the Supplemental Complainant's Motion for A Protective Order

Comes Now the Respondent and files its Response to the Supplemental Complainant's Motion for A Protective Order and would state the following:

1. The Respondent sent an email with its suggested changes.
2. In return the Complainant sent some emails including one claiming that she should not have to work late. The changes were sent at 1:42 P.M. which means she received the material at 12:42 P.M. Central Time in Illinois. Her claim is that she would have to work past business hours.
3. Her timeliness argument is further compromised as she routinely forwards documents past the due date such as her original Motion for a Protective Order as to the Request for Production that was sent out on August 15, 2025, was filed on September 17th, 2025.
4. Rather than file yet another Motion attacking the Respondent, the Complainant could have reviewed the Respondent's proposed changes,

many of which were taken from the Court Order and other changes in standard language.

5. For the Court's Convenience, attached is a clean copy of what was sent to opposing Counsel with an of witnesses signing the equivalent of Exhibit A.
6. The undersigned would prefer to reach an agreement, as per the Court's directive, but needs some cooperation from the Complainant.

Wherefor the Respondent makes this its Response to the Supplemental Complainant's Motion for a Protective Order.

Dated: September 30, 2025

CERTIFICATE OF SERVICE

I certify that on the 30th day of September 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:
Sara Dandan
FourOneOne LLC
2501 Chatham Rd, Suite 8082
Springfield, IL 62704
Email: sara@fouroneone.io
Secretary of FMC <secretary@FMC.gov>
Judges judges@fmc.gov

Respectfully submitted,

Daniel W. Raab. P.A.

s/Daniel W. Raab

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Attorneys

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

[PROPOSED] PROTECTIVE ORDER

IT IS ORDERED that, to expedite discovery, protect confidential information, and ensure that discovery is used solely for this proceeding, the following terms govern:

1. Scope and Definitions

“**Protected Material**” means any document, data, transcript, thing, or information disclosed in discovery that a producing party designates **CONFIDENTIAL** or - **ATTORNEYS’ EYES ONLY** (“**AEO**”) including but not limited to supplier/manufacturer identities and contact details (where not public), vendor lists, commercial invoices/POs/bills of lading that disclose sourcing or pricing, invoices for customs services, bank/ledger details and payment images, carrier/terminal/drayage portal records,

2. Designations

a. **CONFIDENTIAL**: Non-public information whose disclosure could reasonably cause competitiveness, privacy, or business harm.

b. **AEO:** Competitively sensitive information (e.g., pricing, margins, strategic plans, vendor lists, supplier/manufacturer identities, detailed ledgers/bank data) the disclosure of which of a party's business personnel would likely cause substantial competitive harm.

Designation must be made in good faith on the face of the material or by written notice referring to Bates ranges.

3. Access and Use

Protected Material shall be used solely for this FMC proceeding and not for any business, competitive, or other purpose.

CONFIDENTIAL

- Documents designated confidential shall be shown only to the attorneys and their staff, the parties, including employees, parties' experts, actual or proposed witnesses, court reporters, the Commission and its staff, the presiding judge and his staff, prior recipients of the document, and other persons whom the attorneys deem necessary to review the documents for the prosecution or defense of this lawsuit. Each person who is permitted to see confidential documents shall first be shown a copy of this order and shall further be advised of the obligation to honor the confidentiality designation. Confidential documents may also be shown
- *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must

identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. (46 C.F.R. § 502.141(j)(1)). The burden is on the party seeking to protect the information to show good cause for its protection.

- *Depositions* – Parties may not mark entire depositions as confidential. Parties should ask questions that may require confidential responses together, typically at the end of the deposition. Alternatively, parties may mark confidential selected statements in a deposition prior to filing the deposition as an exhibit. Requests for confidential treatment of entire depositions should not be made and may be summarily rejected.
- *Filing* – Parties must file two versions of any filing that includes confidential material, one marked as the “confidential version” and the other marked as the “public version.” (46 C.F.R. § 502.5). These public or confidential labels should be on the (1) cover page,
(2) document name, and (3) preferably also in the page header or footer throughout the filing. Improperly marked filings may be rejected. Both versions should be emailed to *secretary@fmc.gov* with a courtesy copy to *judges@fmc.gov*. The inclusion of any confidential materials should be clearly indicated on the subject line and in the text of the email as well as on the document.
- *Exhibits* – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified,

individual pages may be replaced in the public version with a page indicating that confidential material was excluded. However, the public and confidential appendices must be of the same length (i.e. a single page in the public version should not indicate the omission of multiple pages from the confidential appendix).

- *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. (46 C.F.R. § 502.13).
- *Confidential Request Table* – It is *required* that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table must include: (1) the bates range for confidential document requests, *listed in the order of the bates numbering used for the parties' appendices*; (2) the document's description; (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions; and (4) the legal basis for the confidentiality request. If a bates range in an appendix does not include any confidential information, it should not be listed in the confidential materials list. If a supplemental appendix is later submitted, a new comprehensive confidential bates list must be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests, always ordered by bates numbers used for the parties' appendices).

- *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. (46 C.F.R. § 502.13).
- *Confidential Request Table* – It is *required* that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table must include: (1) the bates range for confidential document requests, *listed in the order of the bates numbering used for the parties' appendices*; (2) the document's description; (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material marked in both the confidential and public versions; and (4) the legal basis for the confidentiality request. If a bates range in an appendix does not include any confidential information, it should not be listed in the confidential materials list. If a supplemental appendix is later submitted, a new comprehensive confidential bates list must be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests, always ordered by bates numbers used for the parties' appendices).

Example: [Party Name] Appendix - Confidential Bates Table

<i>Bates</i>	<i>Description</i>	<i>Classification</i>	<i>Basis for Confidentiality</i>
<i>Range</i>		<i>Requested for</i>	<i>Request</i>

CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
CX 28-29	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

No-use / no-contact. Recipients may not use Protected Material, including supplier/manufacturer identities - to solicit, interfere with, or compete for business, and may not contact any non-party identified in Protected Material for non-litigation purposes.

All recipients must be advised of, and agree to abide by, this Order; experts/consultants shall sign the undertaking (Exhibit A) as should other witnesses.

4. Filings Under Seal

Any filing containing Protected Material shall be filed under seal consistent with Commission procedures; public versions must redact Protected Material.

5. Challenges to Designations

Any party may challenge a designation by written notice. The parties shall confer in good faith.

If unresolved, the challenging party may move for relief. The designating party bears the burden to justify the designation.

6. Inadvertent Production / Clawback

Inadvertent production of privileged or protected material shall not constitute a

waiver. Upon notice, the receiving party shall promptly return or destroy the material and all copies, subject to any permitted challenge procedure.

7. Non-Party Material

If a discovery request or subpoena seeks a non-party's confidential information, the receiving party shall promptly notify the non-party and allow a reasonable opportunity to designate under this Order.

8. Unauthorized Disclosure

If Protected Material is disclosed to any person not authorized by this Order, the receiving party shall promptly notify the producing party, take reasonable steps to retrieve the material, and prevent further disclosure.

9. Final Disposition

Within 60 days after final resolution (including appeals), each receiving party shall return or destroy Protected Material and certify compliance, except that counsel may retain one archival set of pleadings, transcripts, and work product that may contain Protected Material, to be maintained in accordance with this Order.

10. No Waiver / Reservation

Nothing in this Order waives objections to discovery, admissibility, or privilege, or precludes additional protections upon a showing of good cause.

SO ORDERED.

Dated: _____, 2025 Presiding Officer

Federal Maritime Commission

**EXHIBIT A – Expert/Consultant Undertaking/ and
Witnesses**

I have read and agree to be bound by the Protective Order entered in **FMC Docket No. 25-08**. I
submit to the jurisdiction of the Federal Maritime Commission for enforcement of that Order.

Signed: _____ Date: _____

Name / Affiliation: _____
